

The Bill of Rights

- The first ten amendments to the Constitution, ratified 1791
- Added because the Anti Federalists would not support the Constitution without them
- A list of limits on government power, not a list of gifts from government
- Essential question: where does your freedom end and the next person's begin?

First Amendment

- Five freedoms: religion, speech, press, assembly, and petition
- Religion has two clauses: no establishment, and free exercise
- Speech is broad but not unlimited (no true threats, no incitement)
- Case to know: Tinker v. Des Moines, students do not shed rights at the schoolhouse gate

Second Through Fourth

- Second: the right to keep and bear arms, debated to this day
- Third: no quartering of soldiers in homes, the one nobody fights about
- Fourth: no unreasonable searches and seizures, warrants need probable cause
- Connect it: why does a coach need a reason before searching a locker?

Rights of the Accused

- Fifth: due process, no self incrimination, no double jeopardy
- Sixth: speedy and public trial, an attorney, to confront witnesses
- Eighth: no cruel and unusual punishment, no excessive bail
- Why protect the guilty? Because the rules that protect them protect the innocent too

Ninth, Tenth, and You

- Ninth: rights not listed still belong to the people
- Tenth: powers not given to the federal government stay with the states and the people
- Exit ticket: name one right you used today and how
- Homework: read the case brief, we argue it Friday